

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ANTHONY ALSTON,

Plaintiff(s),

Date Purchased:
Index No.
Plaintiff designates
Kings County as the place of trial
The basis of venue is place of
Occurrence

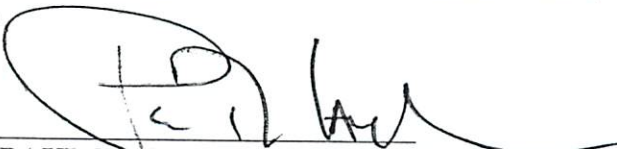
-against-

S U M M O N STHE CITY OF NEW YORK, POLICE OFFICER
ROMAN GORIS, Shield 14772, Individually and
in his Official Capacity, POLICE OFFICER SALWA
JWAYYED, Shield 26007 Individually and in His Official
Capacity; POLICE OFFICERS JOHN DOE 1-3,
(The Names of Which are Fictitious), individually
and in their official capacity,

, Defendants.

Plaintiff resides at
790 Greene Avenue (Apt. 1)
Brooklyn, New York 11221***TO THE ABOVE NAMED DEFENDANTS:***

YOU ARE HEREBY SUMMONED and required to answer to the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if service is made by any method other than personal delivery to you within the State of New York). In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
October 11, 2013
PAUL THOMAS LAYTON, J.D., L.P.Attorney for Plaintiffs
30 Vesey Street (Suite 1803)
New York, New York 10007
Tel: (212) 227-1104**Defendant's Address**One Centre Street/Municipal Building/New York, NY 10007
CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

POICE OFFICER ROMAN GORIS, Shield 14772
One Police Plaza
New York, New York

POLICE OFFICER SALWA JWAYYED, Shield 26007
One Police Plaza
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANTHONY ALSTON,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
POLICE OFFICER ROMAN GORIS, Shield 14772
Individually and in His Official Capacity;
POLICE OFFICER SALWA JWAYYED, Shield 26007
Individually and in His Official Capacity;
POLICE OFFICERS JOHN DOE 1-3,
(The Names of Which are Fictitious), individually,

Defendants.

-----X

FIRST: The nature of Plaintiffs' claims are to recover monetary damages from all defendants, including, but not limited to punitive damages against POLICE OFFICER ROMAN GORIS, Shield 14772 and POLICE OFFICER SALWA JWAYYED, Shield 26007 and POLICE OFFICERS JOHN DOE 1-3, individually, for violation of constitutional rights, pursuant to 42 USC § 1983, illegal search and seizure, false arrest, assault, battery, search and seizure in violation of the 4th Amendment of the United States Constitution and in violation of the laws of the State of New York, physical abuse, excessive force, deprivation of liberty pursuant to the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution, and/or Article I, §§ 5, 6, 8, 9, 12 of the New York State Constitution, and negligence carelessness and recklessness of THE CITY OF NEW YORK, its agents, servants and/or employees, its agents, servants and/or employees, including, but not limited to the Police Officers named in this complaint: POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 and POLICE OFFICERS JOHN DOE 1-3 for false arrest, false imprisonment, assault, battery, abuse of process, excessive force and punitive damages.

SECOND: The aforesaid defendants, at all relevant times, THE CITY OF NEW YORK, and POLICE OFFICER ROMAN GORIS, Shield 14772 and POLICE OFFICER SALWA JWAYYED, Shield 26007 and POLICE OFFICERS JOHN DOE 1-3 were acting under the color of state law in holding Plaintiff ANTHONY ALSTON against his will, with knowledge and/or reason to know that ANTHONY ALSTON did not commit a crime or otherwise provide reasonable cause and/or probable cause to stop him and to search him and with express purpose of denying his Constitutional rights by stopping the vehicle which he was operating and ordering him out of the vehicle and conducting a search of his person on the street including a strip search and body cavity search and breaking his arm and handcuffing him and placing him against his will in the backseat of a police car.

THIRD: That at all times hereinafter mentioned, the Plaintiff ANTHONY ALSTON was a resident of the County of Kings, State of New York.

FOURTH: That at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under the laws of the State of New York.

FIFTH: That at all times hereinafter mentioned, the Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772 and POLICE OFFICER SALWA JWAYYED, Shield 26007 and POLICE OFFICERS JOHN DOE 1-3 were acting within the scope of their employment with THE CITY OF NEW YORK.

SIXTH: That on or about August 22, 2013, and within ninety (90) days after the accrual of the claim sued upon herein, Plaintiff served upon THE CITY OF NEW YORK a duly executed Notice of Claim.

SEVENTH: That more than thirty (30) days have elapsed since the Notice of Claim was served and the Comptroller and Defendants, have failed, neglected, and refused to pay, settle, compromise or adjust the claim of the Plaintiffs herein.

EIGHTH: That this action was commenced within one (1) year and ninety (90) days from the date of the claim accrued.

COUNT I

42 USC § 1983 CLAIM AGAINST POLICE OFFICERS POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007, POLICE OFFICERS JOHN DOE 1-3, FOR DEPRIVATION OF HIS FOURTH AMENDMENT RIGHTS AND NY STATE CONSTITUTIONAL RIGHTS

NINTH: Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

TENTH: That on or about August 8, 2013, Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 , POLICE OFFICERS JOHN DOE 1-3 were employees, agents and/or servants of CITY OF NEW YORK.

ELEVENTH: That on or about August 8, 2013, at approximately 12:30 a.m., Plaintiff, ANTHONY ALSTON was driving a motor vehicle with his companion in the front seat in the vicinity of Marcus Garvey Boulevard and Van Buren Street in the County of Kings, City and State of New York .

TWELFTH: That on or August 8, 2013, at approximately 12:30 a.m. plaintiff ANTHONY ALSTON was ordered to pull his car over and he was ordered out of the motor vehicle at that time and place.

THIRTEENTH: That Plaintiff ANTHONY ALSTON was subjected to a pat down and a search including a strip search and an body cavity search at the corner of Marcus Garvey Boulevard and Van Buren Street in the County of Kings, City and State of New York.

FOURTEENTH: . That Plaintiff ANTHONY ALSTON was subjected to extreme violence and excessive force which resulted in his arm being broken while at the corner of

Marcus Garvey Boulevard and Van Buren Street in the County of Kings, City and State of New York; furthermore Plaintiff was handcuffed, and deprived of his liberty despite the fact that he there was no probable or reasonable cause to stop the plaintiff nor to search the plaintiff.

FIFTEENTH: That POLICE OFFICERS POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICERS JOHN DOE 1-3 stopped, frisked searched and brutally and with excessive force directed at Plaintiff ANTHONY ALSTON engaged in the aforesaid acts with the express intent of preventing him from protections of his rights under the Fourth and Fourteenth Amendments of the United States Constitution and under the laws of the State of New York including the New York State Constitution.

SIXTEENTH: That at all times POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICERS JOHN DOE 1-3 acted within the scope of their employment and under the authority of color of State Law as Police Officers.

COUNT II

MUNICIPAL LIABILITY

SEVENTEENTH: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

EIGHTEENTH: That Defendant, THE CITY OF NEW YORK, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; and failed to prevent the aforesaid pain and suffering, arrest, detainment and permanent injuries to the Plaintiff; and were otherwise reckless, careless and negligent.

NINETEENTH: That as a result of the above referenced negligence; Plaintiff was caused to sustain pain and suffering, arrest, humiliation, detainment and permanent injuries.

TWENTIETH : That as a result of the above, the Plaintiff demands judgment against the Defendant, CITY OF NEW YORK, in an amount exceeding the jurisdictional limit of all lower courts.

COUNT III

AGAINST POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 OFFICERS JOHN DOE 1-3 INDIVIDUALLY, FOR DEPRIVATION OF LIBERTY

TWENTY-FIRST: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

TWENTY-SECOND: Although the Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICERS JOHN DOE 1-3, knew their conduct of detaining and arresting Plaintiff ANTHONY ALSTON when they knew they had no right to, in violation of his constitutional rights, the defendants, detained the Plaintiff, ANTHONY ALSTON, even though they knew or had reason to know that they were making an illegal arrest.

TWENTY-THIRD: That as a result of the foregoing, Plaintiff demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower courts.

COUNT IV

AGAINST DEFENDANTS, THE CITY OF NEW YORK, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICER JOHN DOE 1-3 INDIVIDUALLY FOR NEGLIGENCE

TWENTY-FOURTH: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

TWENTY-FIFTH: That on August 8, 2013, at approximately 12:30 a.m. and the hours thereafter, the aforesaid Defendants, without cause or provocation, carelessly, negligently and recklessly and maliciously, detained and arrested the Plaintiff ANTHONY ALSTON, despite knowing that there was no cause or grounds therefore.

TWENTY-SIXTH: That as a result of the above referenced negligent actions, this Plaintiff sustained physical injury, mental and pecuniary losses and losses of enjoyment of life.

TWENTY-SEVENTH: That as a result of the above negligence, Plaintiff demands judgment against the Defendants in an amount in excess of the jurisdiction of all lower courts.

TWENTY-EIGHTH: That by reason of the foregoing, Plaintiff seeks punitive damages and demands judgment against the Defendants in an amount to be determined at the trial of this action.

COUNT V

AGAINST DEFENDANTS POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICERS JOHN DOE 1-3 FOR EXCESSIVE FORCE.

TWENTY-NINTH: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

THIRTITH : On August 8, 2013, Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007POLICE OFFICERS JOHN DOE 1-3 attacked Plaintiff ANTHONY ALSTON by surrounding him, then attacking him and violently pulling his arm and forcibly held and jostled him and searched him without cause or grounds therefore.

THIRTY-FIRST: That Plaintiff ANTHONY ALSTON did not attempt to use any force in response, did not resist the force being used upon him, nor did he have an opportunity to, as

POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 and POLICE OFFICERS JOHN DOE 1-3 used excessive force in effectuating an unauthorized arrest without probable cause or grounds therefore to believe that Plaintiff ANTHONY ALSTON committed a crime.

THIRTY-SECOND: Defendants POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007, POLICE OFFICERS JOHN DOE 1-3 used excessive force against Plaintiff ANTHONY ALSTON with knowledge that Plaintiff ANTHONY ALSTON did not do anything to provide probable cause to stop and search him and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

THIRTY-THIRD: That Plaintiff ANTHONY ALSTON suffered mental and physical injuries as a result of this incident, including, but not limited to a fractured arm, as a result of the excessive force used to detain the Plaintiff.

THIRTY-FOURTH: that by reason of the foregoing, the Plaintiff demands judgment against the Defendants in an amount in excess of the jurisdictional limits of all lower courts.

COUNT VI

AGAINST DEFENDANTS POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007 POLICE OFFICERS JOHN DOE 1-3 FOR ASSAULT

THIRTY-FIFTH: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

THIRTY-SIXTH: On August 8, 2013, Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007, POLICE OFFICERS JOHN DOE 1-3 attacked Plaintiff ANTHONY ALSTON by surrounding him, then

attacking him and violently throwing pulling on his arm, held and jostled him and searched him without cause or grounds therefore.

THIRTY-SEVENTH: THAT Plaintiff ANTHONY ALSTON suffered mental and physical injuries as a result of this incident, including, but not limited to, fractured arm bone, as a result of the excessive force used to detain the PLAINTIFF.

THIRTY-EIGHTH: that by reason of the foregoing, the Plaintiff demands judgment against the Defendants in an amount that exceeds the jurisdiction of all lower courts.

COUNT VII

AGAINST DEFENDANTS POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007, POLICE OFFICERS JOHN DOE 1-3 FOR BATTERY

THIRTY-NINTH: Plaintiff repeats, reiterates and re-alleges all of the allegations set forth above.

FORTIETH: On August 8, 2013, Defendants, POLICE OFFICER ROMAN GORIS, Shield 14772, POLICE OFFICER SALWA JWAYYED, Shield 26007, POLICE OFFICERS JOHN DOE 1-3 attacked Plaintiff ANTHONY ALSTON by intentionally surrounding him, and without permission began attacking him and violently throwing pulling his arm, held and jostled him, and searched him without cause or grounds therefore.

FORTY-FOURTH: That Plaintiff ANTHONY ALSTON suffered mental and physical injuries as a result of this incident, including, but not limited to, fractured arm bone, as a result of the excessive force used to detain the PLAINTIFF.

FORTY-FIFTH: That by reason of the foregoing, the Plaintiff demands judgment against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff demands judgment pursuant to 42 United States Code, Section 1983 and for attorneys' fees under section 1988, and for his State Common Law claims, for monetary compensation, for pain and suffering and punitive damages; and on all Claims, in an amount that exceeds the jurisdiction of all lower courts and for punitive damages against the individually named defendants, and for such other and further relief this court deems just and proper, together with the costs, disbursements of this action.

Dated: New York, New York
October 11, 2013

Yours, etc.,

PAUL THOMAS LAYTON, ESQ.

Attorneys for Plaintiff
30 Vesey Street (Suite 1803)
New York, New York 10007
(212) 227-1104

By: _____

PAUL THOMAS LAYTON (PTL 9242)

ATTORNEY VERIFICATION

PAUL THOMAS LAYTON, and attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney for the plaintiff(s) in the within action. I have read the foregoing Complaint and know the contents thereof, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affiant and not by the plaintiff(s) is that the plaintiff(s) herein are not currently in the County in which plaintiff(s) attorneys maintain their office.

The source of affiant's information and the grounds for his belief are communications, papers, reports and investigations contained in plaintiff(s) attorney's file.

Dated: New York, New York
October 11, 2013



PAUL THOMAS LAYTON

IN THE MATTER OF THE CLAIM OF

ANTHONY AISTON

against

THE CITY OF NEW YORK

STIPULATION

Claim # 2013 PI 022191

IT IS HEREBY STIPULATED AND AGREED by the attorney for the above named claimant(s) and the Comptroller of the City of New York that:

1) The examination pursuant to General Municipal Law Section 50-h (hereinafter "50-h") of the above named claimant(s) currently scheduled for 10-29-13 is hereby adjourned at the claimant's request. In particular, the claimant alleges that he/she is unable to attend the hearing due to

INCARCERATED

2) Claimant shall be responsible for notifying the City of New York (hereinafter "City"), by certified or registered mail, return receipt requested within thirty (30) days after the claimant has become available to appear and give testimony at said hearing. The notification shall be sent to the Office of the Comptroller of the City, Bureau of Law and Adjustment, 1 Centre Street - 12th Floor, New York, NY 10007. A copy of this stipulation must be attached to the notification. Upon receipt of the notification, the City shall have ninety (90) days in which to schedule the hearing.

3) Claimant may commence an action against the City on the above claim within the applicable statute of limitations prior to the City conducting a hearing or physical examination of claimant pursuant to 50-h.

4) If claimant commences an action against the City, and/or any of its agents, servants or employees claimant(s)/plaintiff(s) shall make no discovery demands, issue shall not be joined, and the defendant(s) time to serve an answer shall extend until 30 days after proper notification has been made as set forth below that the examination(s) pursuant to 50-h is/are completed.

5) Proper notification that the examination(s) pursuant to 50-h is/are completed must be made by either certified or registered mail return receipt requested or hand delivery addressed to the Office of the Corporation Counsel, 100 Church Street, New York, NY 10007, Attention Deputy Chief of the Early Intervention Unit. The notification must include a copy of this signed stipulation and a notarized copy of the hearing transcript with corrections, if any, and a cover letter requesting that an answer be served.

6) Nothing herein shall be construed as a waiver of the City's rights pursuant to 50-h.

Dated: New York, NY

11/17/2013[Signature]

For the City

[Signature]
Attorney for Claimant/Plaintiff
Paul Thomas LATTON, ESQ
Attorney Firm

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

Index#:

ANTHONY ALSTON,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,
POLICE OFFICER ROMAN GORIS, Shield 14772
Individually and in His Official Capacity;
POLICE OFFICER SALWA JWAYYED, Shield 26007
Individually and in His Official Capacity;
POLICE OFFICERS JOHN DOE 1-3,
(The Names of Which are Fictitious), individually,

Defendants

SUMMONS AND VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon informatino and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
October 11, 2013

PAUL THOMAS LAYTON, ESQ.

Attorney For Plaintiff(s)
Office and Post Office Address, Telephone
30 Vesey Street (Suite 1803)
NEW YORK, NY 10007
212-227-1104

To:

Service of a copy of the within is hereby
admitted.

Dated:.....20.....

PLEASE TAKE NOTICE:



NOTICE OF ENTRY

That the within is a true copy of an Order duly entered in the office of the clerk of the within named court on



NOTICE OF SETTLEMENT

that an order Type of Order - of which the within is a true copy will be presented for settlement to the HON. Judge - ,
one of the judges of the within Court at

Dated:

Yours, etc.,

PAUL THOMAS LAYTON, ESQ.